

Appendix A: Multimodal Impact Fee Ordinance

Off-site improvements means transportation-related and/or supportive improvements, other than those referenced in the definition of site-related improvements, located outside of the boundaries of the parcel proposed for development, which are required to serve the development's external trips.

Pinellas County Mobility Plan means a countywide approach to managing the transportation impacts of development projects and increasing mobility for pedestrians, bicyclists, transit users and motor vehicles utilizing the multimodal impact fee ordinance and local site plan review processes.

Pre-existing use refers to the land use that occupied a parcel of land prior to the submittal of a permit/site plan application. In accordance with section 150-40, development projects are entitled to a credit equivalent to the impact fee assessment of any land use activity that existed on the property as of 1986, the original adoption year of the ordinance from which this article is derived. The applicant must provide the necessary documentation to verify a pre-existing use activity not reflected in the current records of the Pinellas County Property Appraiser's Office.

Road means any public way for purposes of travel, including the entire area within the right-of-way.

Site-related improvements means capital improvements necessary for direct access/egress to the development in question. Direct access/egress site-related improvements include but are not limited to the following:

- (1) Site driveways and roads;
- (2) Right and left turn lanes leading to those driveways;
- (3) Traffic control measure for those driveways;
- (4) Acceleration/deceleration lanes;
- (5) Median openings/closing;
- (6) Frontage roads;
- (7) Roads necessary to provide direct access to the development; and
- (8) Pedestrian and other non-motorized transportation improvements such as sidewalks, pathways and bicycle lanes to provide direct access to the development.

Transportation management plan, as developed by an applicant representing a proposed development, is submitted in conjunction with individual site plans seeking to utilize transportation management strategies to address their development impacts, improve the efficiency and safety of the mobility system, and increase the mobility for all users.

Transportation management plan strategies are intended to increase mobility while addressing the transportation impacts of development projects. They include, but are not limited to, density/intensity reductions, project phasing, access controls, capital improvements and/or initiatives encouraging mass transit, bicycle or pedestrian travel, ride-sharing or roadway improvements. They do not include standard requirements necessary for site plan approval or operational improvements.

Volume-to-capacity (v/c) ratio means the rate of traffic flow of an intersection approach or group of lanes during a specific time interval divided by the capacity of the approach or group of lanes.

(Ord. No. 86-43, §§ 3(b)(8), (9), 4, 6-10-86; Ord. No. 98-78, § 1, 9-15-98; Ord. No. 02-98, § 1, 12-3-02; Ord. No. 05-26, § 1, 4-19-05; Ord. No. 16-21, § 2, 3-29-16)

Cross reference(s)—Definitions generally, § 134-2.

Sec. 150-37. Rules of construction.

- (a) The provisions of this article shall be liberally construed so as to effectively carry out its purpose in the interest of the public health, safety and welfare.

Appendix A: Multimodal Impact Fee Ordinance

- (b) For the purpose of administration and enforcement of this article, unless otherwise stated in this article, the following rules of construction shall apply to the text of this article;
 - (1) Any road right-of-way used to define multimodal impact fee district boundaries, as identified in exhibit A (following section 150-50), shall be considered to be within each district it bounds for purposes of using these funds.
 - (2) The land use types listed in section 150-40 shall have the same meaning as under the land use element(s) of the local comprehensive plans.

(Ord. No. 86-43, § 3(a), (b)(10), (11), 6-10-86; Ord. No. 02-98, § 2, 12-3-02; Ord. No. 16-21, § 3, 3-29-16)

Sec. 150-38. Intent, purpose, and legislative findings.

- (a) This article is intended to implement and be consistent with the county comprehensive plan and the plans of the municipalities in the county adopted pursuant to Ch. 163, Florida Statute.
- (b) The purpose of this article is to assure that new development bears a proportionate share of the cost of capital expenditures necessary to meet mobility needs as established by the county comprehensive plan, the Metropolitan Planning Organization's long range transportation plan, and the comprehensive plans of the municipalities in the county.
- (c) The legislative findings are as follows:
 - (1) Florida House Bill 7207, the Community Planning Act, was legislated in 2011. The act eliminated state mandated concurrency management requirements related to transportation facilities for local governments;
 - (2) In 2013, the Pinellas County Metropolitan Organization approved the Pinellas County Mobility Plan. The intent of the mobility plan is to replace local transportation concurrency management programs with a system that provides local governments with the means to manage the traffic impacts of development projects;
 - (3) The transportation element of the comprehensive plan identifies a number of highway system facilities operating under deficient level of service conditions. These require the application of mobility plan provisions in order to manage transportation impacts and to increase mobility through the use of multimodal impact fees to fund mobility improvements;
 - (4) Local comprehensive plans provide data, analysis, and policies supporting the management of development impacts on major roads operating with deficient level of service conditions through the application of the Pinellas County Mobility Plan and supporting land use policies;
 - (5) Transportation management plan strategies are important tools for local governments to manage development impacts while maximizing mobility and accessibility consistent with the comprehensive plan and Fix America's Surface Transportation (FAST) Act; and
 - (6) The Community Planning Act encourages the coordination of planning and growth management activities among local governments, the Metropolitan Planning Organization and regional and state government agencies.

(Ord. No. 86-43, § 2, 6-10-86; Ord. No. 02-98, § 3, 12-3-02; Ord. No. 16-21, § 4, 3-29-16)

Editor's note(s)—Ord. No. 16-21, § 4, adopted March 29, 2016, amended the catchline of § 150-38 to read as herein set out. Said catchline formerly read "Intent and purpose."

Sec. 150-39. Fee required.

- (a) Any person who seeks a certificate of occupancy for land development activity or seeks to change a use by applying for issuance of an occupational license, land use permit, or municipal equivalent thereof which will

Appendix A: Multimodal Impact Fee Ordinance

generate additional traffic shall be required to pay a multimodal impact fee in the manner and amount set forth in this article.

- (b) No certificate of occupancy, use permit or occupational license for any activity requiring payment of an impact fee pursuant to section 150-40 shall be issued unless and until the multimodal impact fee hereby required has been paid.
- (c) Any person who has submitted a site plan or building permit application in accordance with local land development codes prior to the effective date of Ord. No. 16-21 will be subject to the terms of the ordinance that was in effect at the time the site plan or building permit application was submitted.

(Ord. No. 86-43, § 5, 6-10-86; Ord. No. 88-50, § 7, 11-8-88, Ord. No. 01-57, § 1, 8-7-01; Ord. No. 02-98, § 4, 12-3-02; Ord. No. 05-26, § 2, 4-19-05; Ord. No. 16-21, § 5, 3-29-16)

Sec. 150-40. Computation of amount.

- (a) The amount of the multimodal impact fees imposed under this article will depend on a number of factors, including the type of land development activity, and several fixed elements, such as the average cost to construct one lane-mile of roadway (\$2,216,466.00) and the average capacity of one lane-mile of roadway (6,900 vehicles per day).
- (b) The following formula shall be used by the county administrator, city manager or functional equivalent to determine the impact fee per unit of development:

$$\frac{TGR \times \%NT \times TL \times CST (RF)}{CAP \times 2}$$

WHERE:

TGR	=	Trip generation rate, as per fee schedule
%NT	=	Percent new trips
TL	=	Average trip length, varies by land use
CST	=	The cost to construct one-lane mile of roadway (\$2,216,466.00)
CAP	=	The capacity of one-lane mile of roadway (6,900 vehicles per lane, per day)
2	=	Allocation of one-half the impact to the origin and one-half to the destination
RF	=	Reduction factor (.268)

- (c) At the option of the feepayer, the amount of the multimodal impact fee may be determined by the following fee schedules (Schedule A contains the impact fee rates for uses outside of designated downtown areas; Schedule B contains rates for downtown areas):

Schedule A. General Fee Schedule

Land Use Type	Unit	Trip Rate	Avg. Trip Length	Percent New Trips	Fee Per Unit
<i>Residential:</i>					
Single-family:					
0—1,500 sq. ft.	du	6.3	5.0	1.00	\$1,356.00
1,501—2,499 sq. ft.	du	7.8	5.0	1.00	\$1,679.00

Appendix A: Multimodal Impact Fee Ordinance

2,500 sq. ft. and over	du	9.6	5.0	1.00	\$2,066.00
0-1,500 sq. ft. LIHH	du	4.1	5.0	1.00	\$882.00
Multi-family	du	6.6	5.0	1.00	\$1,420.00
Multi-family LIHH	du	3.5	5.0	1.00	\$753.00
Condominium/Townhome	du	5.8	5.0	1.00	\$1,248.00
Efficiency apt./hotel	room	5.0	3.3	0.59	\$419.00
Mobile home	du	5.0	5.0	1.00	\$1,076.00
Licensed ACLF	bed	2.7	2.8	.74	\$241.00
<i>General Office:</i>					
0—49,999 sq. ft.	1,000 sf	16.3	5.1	0.92	\$3,292.00
50,000—149,999 sq. ft.	1,000 sf	13.7	5.1	0.92	\$2,767.00
150,000—299,999 sq. ft.	1,000 sf	11.5	5.1	0.92	\$2,323.00
300,000—599,999 sq. ft.	1,000 sf	10.4	5.1	0.92	\$2,100.00
600,000—799,999 sq. ft.	1,000 sf	8.4	5.1	0.92	\$1,697.00
Over 800,000 sq. ft.	1,000 sf	8.2	5.1	0.92	\$1,656.00
<i>Research Center:</i>					
Research center	1,000 sf	6.1	5.1	0.92	\$1,232.00
<i>Industrial:</i>					
General industrial	1,000 sf	7.0	5.1	0.92	\$1,414.00
Industrial park	1,000 sf	7.0	5.1	0.92	\$1,414.00
Manufacturing	1,000 sf	3.8	5.1	0.92	\$767.00
Warehousing	1,000 sf	3.6	5.1	0.92	\$727.00
Mini-warehousing	1,000 sf	2.5	3.1	0.92	\$307.00
<i>Medical:</i>					
Hospital	bed	11.8	6.4	0.77	\$2,503.00
Nursing home	bed	2.4	2.8	0.75	\$217.00
Clinic/medical office	1,000 sf	35.2	4.9	0.85	\$6,311.00
Veterinary clinic	1,000 sf	32.8	1.9	0.70	\$1,878.00
<i>Lodging:</i>					
Hotel	room	8.2	6.4	0.71	\$1,604.00
Motel (budget style)	room	5.6	6.4	0.59	\$910.00
Resort hotel	room	18.4	5.4	0.75	\$3,208.00
<i>Recreation:</i>					
General recreation	pkg sp	3.4	6.4	0.90	\$843.00
Marina	boat berth	3.0	7.0	0.90	\$814.00
Dry dock marina	boat slip	2.1	3.6	0.90	\$293.00
Racquet club	1,000 sf	14	3.0	0.75	\$1,356.00
Golf course	acre	5.0	7.1	0.90	\$1,375.00
Fitness center	1,000 sf	27.0	4.0	0.84	\$3,905.00
<i>Retail:</i>					
Quality restaurant	1,000 sf	90.0	2.5	0.82	\$7,942.00
Sit-down restaurant	1,000 sf	127.0	1.9	0.79	\$8,205.00
Drive-in restaurant	1,000 sf	496.0	1.7	0.54	\$19,599.00
Quality drive-in restaurant	1,000 sf	279.7	1.7	0.75	\$15,350.00

Appendix A: Multimodal Impact Fee Ordinance

Discount store (ind.)	1,000 sf	56.0	1.8	0.61	\$2,647.00
Building materials store	1,000 sf	45.2	1.7	0.61	\$2,018.00
Home improvement superstore	1,000 sf	29.8	2.2	0.83	\$2,342.00
New and used car sales	1,000 sf	33.3	2.4	0.79	\$2,718.00
Service station w/ conven. market <800 sf	pump	162.8	1.9	0.23	\$3,062.00
Car wash	1,000 sf	151.2	1.6	0.67	\$6,977.00
Supermarket	1,000 sf	102.0	1.7	0.53	\$3,956.00
Convenience market (under 3,000 sf)	store	1762.9	1.5	0.25	\$28,456.00
Convenience market (3,000 sf or over)	1,000 sf	887.1	1.5	0.25	\$14,319.00
Movie theater w/ matinee	screen	132.0	2.3	0.85	\$11,108.00
Auto repair/detailing	1,000 sf	28.4	2.2	0.83	\$2,232.00
Furniture store	1,000 sf	5.1	2.4	0.79	\$351.00
Retail nursery (garden ctr.)	1,000 sf	36.0	1.8	0.61	\$1,701.00
Discount club store	1,000 sf	41.8	4.0	0.89	\$6,405.00
Discount superstore	1,000 sf	65.3	2.2	0.83	\$5,133.00
Video rental store (freestanding)	1,000 sf	13.6	2.3	0.85	\$1,144.00
General Commercial:					
Under 100,000 sq. ft.	1,000 sf	94.7	1.7	0.49	\$3,396.00
100,000—199,999 sq. ft.	1,000 sf	74.3	1.8	0.63	\$3,627.00
200,000—299,999 sq. ft.	1,000 sf	58.9	2.0	0.75	\$3,803.00
300,000—399,999 sq. ft.	1,000 sf	48.3	2.3	0.79	\$3,778.00
400,000—499,999 sq. ft.	1,000 sf	43.0	2.5	0.80	\$3,702.00
500,000—999,999 sq. ft.	1,000 sf	37.7	3.0	0.81	\$3,943.00
Over 1,000,000 sq. ft.	1,000 sf	33.4	3.6	0.81	\$4,192.00
Services:					
Bank	1,000 sf	144.0	1.6	0.30	\$2,975.00
Institutional:					
Church	1,000 sf	9.1	3.9	0.90	\$1,375.00
Library (private)	1,000 sf	56.0	3.9	0.90	\$8,461.00
Day care center	1,000 sf	79.0	2.0	0.74	\$5,033.00
Elementary school	student	1.3	4.3	0.80	\$192.00
High school	student	1.7	4.3	0.90	\$283.00
Junior/community college	student	1.2	7.3	0.90	\$339.00
University	student	2.4	7.3	0.90	\$679.00
Airport	flights	2.0	6.0	0.90	\$465.00
Park	acres	36.5	6.4	0.90	\$9,050.00

Notes: LIHH = Low income household. Fees for LIHH are assessed as a component of affordable housing development incentive programs as certified by the local government. Single-family square footage is the heated living area square footage. General commercial unit is gross leasable area.

Schedule B. Downtown Area Fee Schedule

Land Use Type	Unit	Trip Rate	Avg. Trip Length	Percent New Trips	Fee Per Unit
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Appendix A: Multimodal Impact Fee Ordinance

<i>Residential:</i>					
Single-family:					
0-1,500 sq. ft.	du	6.3	5.0	0.74	\$1,003.00
1,501 - 2,499 sq. ft.	du	7.8	5.0	0.74	\$1,242.00
2,500 sq. ft. and over	du	9.6	5.0	0.74	\$1,529.00
0-1,500 sq. ft. (LIHH)	du	4.1	5.0	0.74	\$653.00
Multi-family	du	6.6	5.0	0.74	\$972.00
Multi-family (LIHH)	du	3.5	5.0	0.74	\$557.00
Condominium/townhome	du	5.8	5.0	0.74	\$924.00
Efficiency apt./hotel	room	5.0	3.3	0.59	
Mobile home	du	5.0	5.0	0.74	\$796.00
Licensed ACLF	bed	2.7	2.8	0.74	\$241.00
<i>General Office:</i>					
0—49,999 sq. ft.	1,000 sf	16.3	5.1	0.74	\$2,648.00
50,000—149,999 sq. ft.	1,000 sf	13.7	5.1	0.74	\$2,226.00
150,000—299,999 sq. ft.	1,000 sf	11.5	5.1	0.74	\$1,868.00
300,000—599,999 sq. ft.	1,000 sf	10.4	5.1	0.74	\$1,689.00
600,000—799,999 sq. ft.	1,000 sf	8.4	5.1	0.74	\$1,365.00
Over 800,000 sq. ft.	1,000 sf	8.2	5.1	0.74	\$1,332.00
<i>Research Center:</i>					
Research center	1,000 sf	6.1	5.1	0.74	\$991.00
<i>Industrial:</i>					
General industrial	1,000 sf	7.0	5.1	0.74	\$1,137.00
Industrial park	1,000 sf	7.0	5.1	0.74	\$1,137.00
Manufacturing	1,000 sf	3.8	5.1	0.74	\$617.00
Warehousing	1,000 sf	3.6	5.1	0.74	\$585.00
Mini-warehousing	1,000 sf	2.5	3.1	0.74	\$247.00
<i>Medical:</i>					
Hospital	bed	11.8	6.4	0.62	\$2,015.00
Nursing home	bed	2.4	2.8	0.60	\$174.00
Clinic/medical office	1,000 sf	35.2	4.9	0.70	\$5,197.00
Veterinary clinic	1,000 sf	32.8	1.9	0.70	\$1,878.00
<i>Lodging:</i>					
Hotel	room	8.2	6.4	0.61	\$1,378.00
Motel (budget style)	room	5.6	4.0	0.61	\$588.00
Resort hotel	room	18.4	5.4	0.61	\$2,609.00
<i>Recreation:</i>					
General recreation	pkg sp	3.4	6.4	0.32	\$300.00
Marina	boat berth	3.0	7.0	0.32	\$289.00
Dry dock marina	boat slip	2.1	3.6	0.32	\$104.00
Racquet club	1,000 sf	14	3.0	0.32	\$579.00
Fitness center	1,000 sf	27.0	4.0	0.36	\$1,674.00
<i>Retail:</i>					
Quality restaurant	1,000 sf	90.0	2.5	0.21	\$2,034.00

Appendix A: Multimodal Impact Fee Ordinance

Sit-down restaurant	1,000 sf	127.0	1.9	0.21	\$2,181.00
Drive-in restaurant	1,000 sf	496.0	1.7	0.21	\$7,622.00
Quality drive-in restaurant	1,000 sf	279.7	1.7	0.21	\$4,298.00
Discount store (ind.)	1,000 sf	56.0	1.8	0.34	\$1,475.00
Building materials store	1,000 sf	45.2	1.7	0.34	\$1,125.00
Home improvement superstore	1,000 sf	29.8	2.2	0.34	\$959.00
New and used car sales	1,000 sf	33.3	2.4	0.52	\$1,789.00
Service station w/ conven. market <800 sf	pump	162.8	1.9	0.23	\$3,062.00
Car wash	1,000 sf	151.2	1.6	0.40	\$4,165.00
Supermarket	1,000 sf	102.0	1.7	0.53	\$3,956.00
Convenience market (under 3,000 sf)	store	1762.9	1.5	0.25	\$28,456.00
Convenience market (3,000 sf or over)	1,000 sf	887.1	1.5	0.25	\$14,319.00
Movie theater w/ matinee	screen	132.0	2.3	0.58	\$7,580.00
Auto repair/detailing	1,000 sf	28.4	2.2	0.56	\$1,506.00
Furniture store	1,000 sf	5.1	2.4	0.52	\$231.00
Retail nursery (garden ctr.)	1,000 sf	36.0	1.8	0.34	\$948.00
Discount club store	1,000 sf	41.8	4.0	0.30	\$2,159.00
Discount superstore	1,000 sf	65.3	2.2	0.30	\$1,855.00
Video rental store (freestanding)	1,000 sf	13.6	2.3	0.32	\$431.00
<i>General Commercial:</i>					
Under 100,000 sq. ft.	1,000 sf	94.7	1.7	0.30	\$2,079.00
100,000—199,999 sq. ft.	1,000 sf	74.3	1.8	0.35	\$2,015.00
200,000—299,999 sq. ft.	1,000 sf	58.9	2.0	0.47	\$2,383.00
300,000—399,999 sq. ft.	1,000 sf	48.3	2.3	0.51	\$2,439.00
400,000—499,999 sq. ft.	1,000 sf	43.0	2.5	0.53	\$2,452.00
500,000—999,999 sq. ft.	1,000 sf	37.7	3.0	0.54	\$2,629.00
Over 1,000,000 sq. ft.	1,000 sf	33.4	3.6	0.54	\$2,795.00
<i>Services:</i>					
Bank	1,000 sf	144.0	1.6	0.30	\$2,975.00
<i>Institutional:</i>					
Church	1,000 sf	9.1	3.9	0.35	\$535.00
Library (private)	1,000 sf	56.0	3.9	0.63	\$5,923.00
Day care center	1,000 sf	79.0	2.0	0.47	\$3,196.00
Elementary school	student	1.3	4.3	0.53	\$128.00
High school	student	1.7	4.3	0.63	\$198.00
Junior/community college	student	1.2	7.3	0.63	\$238.00
University	student	2.4	7.3	0.63	\$475.00
Park	acre	36.5	6.4	0.63	\$6,335.00

Notes: LIHH = Low income household. Fees for LIHH are assessed as a component of affordable housing development incentive programs as certified by the local government. Single-family square footage is the heated living area square footage. General commercial unit is gross leasable area.

The Downtown Area fee schedule applies to existing downtown areas geographically depicted in the attached maps including Exhibit A: Multimodal Impact Fee Districts; Exhibit B: Tarpon Springs Downtown Area

Appendix A: Multimodal Impact Fee Ordinance

District 1A; Exhibit C: Oldsmar Downtown Area District 2A; Exhibit D: Palm Harbor Downtown Area District 3A; Exhibit E: Dunedin Downtown Area District 4A; Exhibit F: Safety Harbor Downtown Area District 5A; Exhibit G: Clearwater Downtown Area District 6A; Exhibit H: Largo Downtown Area District 7A; Exhibit I: Pinellas Park Downtown Area District 10A; and Exhibit J: St. Petersburg Downtown Area District 11A. The 1990 MPO Pinellas County Transportation Impact Fee Study contains technical data indicating there are significantly fewer new vehicle trips generated for each unit of development in these areas as compared to similar land uses outside them. These areas are delineated in locally adopted redevelopment or comprehensive plans with supporting policies designed to encourage infill and redevelopment activity. New areas with similar trip generation characteristics, as described in the 1990 MPO Pinellas County Transportation Impact Fee Study, may be added to the attached exhibits through the amendment of the ordinance pursuant to the submittal of a detailed map and documentation that such areas meet the criteria in the 1990 Pinellas County MPO Transportation Impact Fee Study.

In the case of a change of use, redevelopment, or modification of an existing use, the impact fee shall be based upon the net increase in the impact fee for the new use as compared to the impact fee for the highest previous use in existence on or after the effective date of the ordinance from which this section derives. The county administrator or city manager shall be guided in this determination by the county's transportation impact fee study (February 1990), independent study trip generation data or the Institute of Transportation Engineers' Trip Generation, sixth (or successor) edition.

- (d) If a feepayer shall opt not to have the impact fee determined according to subsections (b) and (c) of this section, then the feepayer shall prepare and submit to the county administrator, city manager or functional equivalent for approval of an independent fee calculation study for the land development activity for which a certificate of occupancy, land use permit or occupational license is sought. The traffic engineering and/or economic documentation submitted, which will require a pre-application meeting with the county administrator, city manager or functional equivalent, shall show the basis upon which the independent fee calculation was made, including but not limited to the following:
- (1) Trip generation studies:
 - a. Documentation of trip generation rates appropriate for the proposed land development activity.
 - b. Documentation of trip length appropriate for the proposed land development activity.
 - c. Documentation of trip data appropriate for the proposed land development activity.
 - (2) Economic documentation studies:
 - a. Documentation of the cost per lane per mile for roadway construction for the proposed land development activity.
 - b. Documentation of credits attributable to the proposed land development activity which the feepayer will make available to replace the portion of the service volume used by the traffic generated by the proposed land development activity.
- (e) Trip generation data. Trip generation documentation other than traffic engineering or economic documentation described in Subsection 150-40(d)(1) and (2) may be submitted by the applicant in consideration of an independent fee calculation.

(Ord. No. 86-43, § 6, 6-10-86; Ord. No. 88-50, §§ 1—3, 5, 11-8-88; Ord. No. 90-88, § I, 12-4-90; Ord. No. 98-78, § 2, 9-15-98; Ord. No. 02-98, § 5, 12-3-02; Ord. No. 03-80, § 1, 10-21-03; Ord. No. 04-88, § 1, 12-21-04; Ord. No. 05-26, § 3, 4-19-05; Ord. No. 07-29, § 1, 7-10-07; Ord. No. 09-23, § I, 4-21-09; Ord. No. 11-04, § I, 2-22-11; Ord. No. 16-21, § 6, 3-29-16; Ord. No. 19-15, § 1, 7-23-19)

Sec. 150-41. Payment of fee and credits.

- (a) The person applying for the issuance of a certificate of occupancy, land use permit or occupational license shall pay the multimodal impact fee to the county administrator, the city manager, their functional

Appendix A: Multimodal Impact Fee Ordinance

equivalent or their respective designees at the issuance of such permit. Fees for mobile homes shall be payable at the issuance of the permits which allow the mobile home to move on to a lot. The county administrator, city manager, their functional equivalent or their respective designees will have full collection authority as well as full discretion for approval of alternative methods for calculation of impact fees on a case-by-case basis. Fees shall be collected as part of the normal permitting process of each local jurisdiction.

- (b) All funds collected under this article shall be properly identified by the multimodal impact fee district, as identified in exhibit A, and promptly transferred for deposit into the appropriate multimodal impact fee trust account to be held in separate accounts as determined in section 150-42 and used solely for the purposes specified in this article.
- (c) In lieu of all or part of the multimodal impact fee imposed under this article, the county administrator, city manager or functional equivalent may accept the offer by a feepayer to implement all or part of a mobility improvement project consistent with the local government comprehensive plan or plans, or the metropolitan planning organization's long range transportation plan. The project(s) may be for any mode of transportation, including rail, transit, pedestrian or bicycle travel, providing that it serves to add to the capacity of the surrounding transportation circulation system or to increase mobility and reduce the dependence on automobile travel. This offer shall not include site-related improvements. These improvements must be in accordance with city, county and state requirements, whichever are applicable. The feepayer shall submit an offer to make improvements in lieu of a fee payment. The offer shall include a letter detailing the improvements to be made, improvement plans and a construction cost estimate in sufficient detail to allow the county administrator, city manager or functional equivalent to determine consistency with local requirements. If the county administrator, city manager, functional equivalent or their respective designees accept such an offer, the cost of the improvement project, except for the improvements identified in subsections 150-41(h), (i) and (j), shall be credited against the multimodal impact fee assessed on the proposed development. Upon satisfactory completion and construction approval of the transportation improvement made in lieu of all or a portion of the impact fee due, the improvement shall be accepted by the appropriate jurisdiction for future maintenance. If the certificate of occupancy is requested prior to the completion of the approved project, then a performance bond shall be provided to the county administrator, city manager or functional equivalent to cover the balance of all work required following issuance of the certificate of occupancy.
- (d) Construction of on-site trail, pedestrian or bicycle facility if part of trail, bicycle or pedestrian network identified in MPO Long Range Transportation Plan or local comprehensive plan is eligible for credit against impact fee assessment. No credit shall be given for other site-related improvements or land dedicated for related right-of-way.
- (e) All transportation improvements required under a county- or city-approved development order issued for a new development of regional impact approved prior to the effective date of this ordinance, except for those improvements deemed as site-related or on-site, shall be credited against multimodal impact fees up to the total amount of the impact fee.
- (f) Mixed-use developments consisting of complementary land uses that are designed with connectivity to allow for a reduction in trip lengths and/or percent new trips are eligible for an impact fee rate adjustment based on trip generation data for similar uses.
- (g) Commuter assistance programs with long-term contract facilitating ride sharing activity are eligible for an impact fee rate reduction based on the reduction in the number of single-occupant vehicle trips that would otherwise be associated with the project.
- (h) Bus stop shelters, including pads, are eligible for a credit against the impact fee assessment in an amount equal to the cost of the improvement or one percent of the fee, whichever is greater.
- (i) Construction of shared driveway(s) between adjacent properties is eligible for a credit against the impact fee assessment in an amount that is 50 percent of the construction cost for the portion of the driveway that is located off-site.

Appendix A: Multimodal Impact Fee Ordinance

- (j) Construction of shared inter-connecting parking lots is eligible for a credit against the impact fee assessment in an amount that is 50 percent of the construction cost for the portion of the parking area located off-site.
- (k) Sidewalks constructed for credit against impact fee assessment must provide connection between the site and surrounding sidewalk network and/or major destination point such as a park, shopping center, school, community center, etc.
- (l) Pedestrian and bicycle facilities connecting neighboring properties may be eligible for credit against impact fees for the portion of the construction that is off-site.
- (m) Construction of service roads for vehicular traffic connecting adjacent developments are eligible for credit against impact fee assessment.
- (n) Off-site crosswalk enhancements, including curb bulb-out at intersection, pavement marking, raised crossing are eligible for credit against impact fee assessment.
- (o) Subsections 150-41(c) through (f) do not apply to development projects that are subject to the requirements of subsections 150-48(c), (d) and (f).

(Ord. No. 86-43, § 7, 6-10-86; Ord. No. 01-57, § 2, 8-7-01; Ord. No. 02-98, § 6, 12-3-02; Ord. No. 05-26, § 4, 4-19-05; Ord. No. 16-21, § 7, 3-29-16; Ord. No. 19-15, § 2, 7-23-19)

Sec. 150-42. Trust accounts established.

- (a) Each municipality which collects and administers multimodal impact fee funds shall establish a trust account which shall be used exclusively for funds collected under the terms of this article. Monies collected by or forwarded to the county shall be maintained in 13 separate impact fee trust accounts consistent with the districts shown in exhibit A.
- (b) Funds deposited to the trust accounts established under this section must be used in accordance with the provisions of section 150-43.

(Ord. No. 86-43, § 8, 6-10-86; Ord. No. 02-98, § 7, 12-3-02; Ord. No. 16-21, § 8, 3-29-16)

Sec. 150-43. Disposition of funds.

- (a) Funds collected from multimodal impact fees shall be used for the purpose of preparing and implementing plans and projects that improve the capacity of the surrounding mobility system, including bicycle, pedestrian, transit and automobile uses. Such improvements may be in the form of plans and projects that involve improvements to transportation modes such as transit, pedestrian and bicycle travel as well as roadway expansion or modifications. Such improvements shall be of the type as are made necessary by the new development to support the area mobility network. Plans which are funded from multimodal impact fees shall be prepared by or for a local government and for the purpose of defining appropriate and relevant mobility projects for implementation. A plan must identify at least one project to be included in the local government capital improvement program within three years of completion of the plan, or the funds used for the plan must be returned to the appropriate trust account. Specific projects to receive funds from impact fees collected shall be determined by the elected officials of the jurisdiction from where the funds were collected in accordance with subsection 150-43(e). Priorities for impact fee funded mobility improvements shall be established by the administering jurisdictions' elected officials in compliance with the adopted plans and transportation improvement program of the metropolitan planning organization or local jurisdictions.
- (b) No funds collected under this article shall be used for periodic maintenance, as defined in F.S. ch. 334, as amended.
- (c) Except as provided in subsection (e) of this section, funds shall be used exclusively for mobility improvements or expansions within the multimodal impact fee district from which funds were collected.

Appendix A: Multimodal Impact Fee Ordinance

Funds may also be used for projects located outside the district where they were collected provided the county has notified and received concurrence from all jurisdictions located within the multimodal impact fee district where the funds were collected. Funds shall be deemed expended in the order in which they are collected.

- (d) Fees, both county and municipal share, collected within a community redevelopment or tax increment financing district shall be expended within such district. Parking garages for general public purposes shall be considered eligible transportation improvements within such districts. With the concurrence of the county administrator, appropriate city manager or functional equivalent, the funds collected within a community redevelopment or tax increment financing district may be spent within the primary district.
- (e) Multimodal impact fees collected at the local level shall be held by the collecting jurisdiction until the end of the fiscal year in which collected. At the beginning of each new fiscal year (October 1), one-half of all fees collected, and the accrued interest thereon, less the four percent retained from the total fee collected for administrative costs, shall be forwarded to the board of county commissioners for placement in the appropriate trust account. The remaining one-half shall be deposited in the municipality's multimodal impact fee trust account. All fees must be disbursed, encumbered or refunded by each jurisdiction receiving the fees in a manner consistent with this article.
- (f) Multimodal impact fees collected within each district may be made available for construction of improvements on the state road network in the district.
- (g) Multimodal impact fee funds shall be administered as an independent component of the capital improvement element of the comprehensive plan, as required by Ch. 163, Florida Statute. Each fiscal year, the county administrator, respective city managers or functional equivalents shall present to their governing boards the district improvement programs for transportation expenditures. These programs shall assign mobility improvements costs and related expenses to the trust account for specific transportation improvement projects. Monies, including any accrued interest not assigned in any fiscal year, shall be retained in the same multimodal impact fee trust accounts until the next fiscal year, except as provided by the refund provisions of this article. The collecting jurisdiction (either a municipality or the county) shall retain four percent of the fees collected for administrative costs.

(Ord. No. 86-43, § 9, 6-10-86; Ord. No. 88-50, § 6, 11-8-88; Ord. No. 90-88, § II, 12-4-90; Ord. No. 02-98, § 8, 12-3-02; Ord. No. 05-26, § 5, 4-19-05; Ord. No. 16-21, § 9, 3-29-16)

Sec. 150-44. Refund of fee paid.

Any funds not expended or encumbered by the end of the calendar quarter immediately following ten years from the date the multimodal impact fee was paid shall, upon application of the feepayer within 180 days of that date, be returned to the feepayer with interest at a yearly rate to be determined by the Consumer Price Index effective January 1, which is to be applied to the preceding year for each year the deposit is held.

(Ord. No. 86-43, § 10, 6-10-86; Ord. No. 98-78, § 3, 9-15-98; Ord. No. 16-21, § 10, 3-29-16)

Sec. 150-45. Exemptions.

The following shall be exempted from payment of the multimodal impact fee:

- (1) Alteration or expansion of an existing building where no additional units or floor area are created, use is not changed, and where no additional vehicular trips will be produced over and above that produced by the existing use.
- (2) The construction of accessory buildings or structures which will not produce additional vehicular trips over and above that produced by the principal building or use of the land.

Appendix A: Multimodal Impact Fee Ordinance

- (3) The replacement of a building or structure with a new building or structure of the same use provided that no additional trips will be produced over and above those produced by the original building or structure.

- (4) The construction of publicly-owned facilities used primarily for traditional government uses.

(Ord. No. 86-43, § 11, 6-10-86; Ord. No. 98-78, § 4, 9-15-98; Ord. No. 99-5, § 1, 1-19-99; Ord. No. 99-41, § 1, 4-20-99; Ord. No. 99-93, § 1, 10-26-99; Ord. No. 02-98, § 9, 12-3-02; Ord. No. 03-80, § 2, 10-21-03; Ord. No. 04-28, § 1, 4-13-04; Ord. No. 04-74, § 1, 10-26-04; Ord. No. 05-26, § 6, 4-19-05; Ord. No. 16-21, § 11, 3-29-16)

Sec. 150-46. Review committee.

It is the intention of the board of county commissioners to ensure consistency in administration of the multimodal impact fee ordinance. Therefore, a review committee composed of locally designated administrative officials is created to review matters which may be subject to differing interpretations arising from the administration of the article, and which are not clearly addressed by the provisions of this article. The Metropolitan Planning Organization Technical Coordinating Committee (TCC) shall serve as the review committee. The TCC shall make advisory recommendations to the administering jurisdiction on issues brought before the committee. The county metropolitan planning organization shall maintain the records of the committee and a listing of its membership. The metropolitan planning organization shall also provide staff services to the committee.

(Ord. No. 86-43, § 12, 6-10-86; Ord. No. 90-88, § III, 12-4-90; Ord. No. 02-98, § 10, 12-3-02; Ord. No. 16-21, § 12, 3-29-16)

Cross reference(s)—Boards, commissions, councils and authorities, § 2-226 et seq.

Sec. 150-47. Review of fee structure.

The multimodal impact fee schedule shall be reviewed every two years by the board of county commissioners and the metropolitan planning organization. The review shall consider trip generation rates and the actual construction costs for work contracted by the county and the state department of transportation within the county. The purpose of this review is to analyze the effects of inflation on the actual costs of mobility improvement projects and to ensure the fee charged new land development activity generating traffic will not exceed its fair share.

(Ord. No. 86-43, § 13, 6-10-86; Ord. No. 90-88, § IV, 12-4-90; Ord. No. 02-98, § 11, 12-3-02; Ord. No. 16-21, § 13, 3-29-16)

Sec. 150-48. Mobility management.

- (a) Transportation management plans are required for development applications subject to the provisions in subsections 150-48(c), (d) and (f) utilizing transportation management strategies/improvements included in an approved transportation management plan in terms of the scale of the project(s) and roadway capacity and/or mobility benefits provided shall be based primarily on the projected impact of the development project on the surrounding traffic circulation system. Specific conditions of the deficient road corridor impacted by the development shall also be considered.

Transportation management plan strategies/improvements required in accordance with subsections 150-48(c), (d) and (f) will be determined at the time of site plan review. Transportation management plans must be developed by the applicant and accepted by the applicable local government. If the project impacts a state road, the applicant must also submit the transportation management plan to the Florida Department of Transportation District 7 Office. Transportation management plan strategies/improvements include, but are not limited to, those listed below. Transportation management plans seeking to implement strategies that do not involve structural improvements, such as ride-sharing and transit incentive programs, must include a monitoring program to ensure the strategies

Appendix A: Multimodal Impact Fee Ordinance

are carried out in accordance with the plan. Site-related improvements are not eligible for inclusion in transportation management plans.

- (1) *Intensity reduction.* The intensity of the proposal may be reduced through an across-the-board reduction of the permitted floor area ratio, as it would otherwise normally apply to the proposal. Other such corrective actions that would reduce the intensity of the proposal may also apply.
 - (2) *Density reduction.* The density of the proposal may be decreased by a reduction in the number of units per acre below that which would otherwise normally apply to the proposal.
 - (3) *Project phasing.* A project may be divided into logical phases of development by area, with later phases of the development proposal's approval withheld until the needed facilities are available.
 - (4) *Outparcel deletion.* Those portions of the proposal characterized as outparcels that create separate and unique impacts may be deleted from the total proposal.
 - (5) *Physical highway improvements.* A project may construct link capacity improvements, acceleration/deceleration lanes, intersection improvements or frontage roads.
 - (6) *Operational improvements (signal).* This includes efforts involving signal removal or signal timing improvements.
 - (7) *Access management strategies.* These include access management controls such as the preclusion of a direct connection to an LOS deficient facility, right-in/right-out driveways, alternative driveway locations, reduction of a driveway, single point access, shared access or the implementation of median controls.
 - (8) *Mass transit initiatives.* A project may implement a plan to encourage transit (e.g., employer-issued bus passes). Other mass transit initiatives may include, but are not limited to, the construction of bus stop amenities, bus pull-off areas and dedication of park and ride parking spaces.
 - (9) *Demand management/commuter assistance.* These include efforts to encourage ride-sharing (e.g., designated parking spaces for carpools, employer-sponsored carpool program, participation in transportation management organization/initiative programs), and implementation of flexible work hours and telecommuting programs.
 - (10) *Bicycle/pedestrian improvements.* These would involve structural improvements or construction of a bikeway or sidewalk connecting an existing bikeway/sidewalk network or providing access to a school, park, shopping center, etc. These improvements may also include pedestrian treatments in parking area, sidewalks connecting developments with adjacent land uses, trail improvements and bicycle rack and on-street bicycle lane installations, and the planting of trees to provide shade canopy along sidewalks.
 - (11) *Intelligent transportation system improvements.* This includes improvements pertaining to computerized traffic signal systems that automatically adjust to maximize traffic flow and to permit emergency vehicles to pass through intersections quickly. It also includes freeway management systems, such as electronic message signs, and electronic fare payment on public buses that reduce passenger boarding time.
 - (12) *Livable community site design features.* These include, but are not limited to, implementation of pedestrian friendly site design features such as orienting buildings toward the street and parking lots to the side or rear of buildings.
- (b) Deficient road corridors include parcels, all or a portion of which lie within a corridor as defined below.
- (1) *Sole direct access.* A condition where the only means of site ingress/egress is directly onto the road facility, regardless of the distance of that site from the facility;
 - (2) *Direct access.* A condition in which one or more existing or potential site ingress/egress points makes a direct connection to the road facility and the site is within one-half mile of the road facility; and

Appendix A: Multimodal Impact Fee Ordinance

- (3) *Sole indirect access.* A condition where the only point of site ingress/egress is onto a public non-arterial roadway which makes its first and shortest arterial level connection onto a road facility regardless of the distance of that site from the facility.
- (c) Development projects that generate between 51 and 300 new peak hour trips are designated as tier 1.
- (1) Developers of tier 1 projects located within deficient road corridors are required to submit a transportation management plan designed to address their impacts while increasing mobility and reducing the demand for single occupant vehicle travel.
- (2) The cost of transportation management strategies implemented for tier 1 projects are creditable toward their multimodal impact fee assessment. If the cost of the improvement exceeds the assessment, the development project would not be subject to the payment of a multimodal impact fee per sections 150-39 and 150-40.
- (d) Development projects that generate more than 300 new peak hour trips are designated as tier 2.
- (1) Developers of tier 2 projects within deficient road corridors are required to conduct a traffic study and submit an accompanying report. The report shall include the results of the traffic study and a transportation management plan identifying improvements necessary to address the impacts of the project.
- (2) The cost of transportation management strategies implemented for tier 2 projects may be applied as credit toward the project's multimodal impact fee assessment or payment of the fee could be included as part of a transportation management plan.
- (e) Development projects that generate less than 51 new peak hour trips are required to pay a multimodal impact fee in accordance with chapter 150. Such development projects are not required to submit a transportation management plan or traffic study, unless otherwise warranted.
- (f) Development projects that generate more than 50 new peak hour trips on non-deficient roads shall be reviewed by Pinellas County or municipal staff to determine if the impacts to the project adversely affect the level of service of the surrounding road network. If it is determined that approval of the development project would diminish the level of service of the adjacent road(s) to peak hour level of service E or F or would cause the volume-to-capacity ratio to reach or exceed 0.9, a transportation management plan would be required. The applicant may submit a traffic study to verify whether their project would affect the level of service of the adjacent road(s). A transportation management plan would be required if the results of the study confirm the findings of the city or county staff. The transportation management plan for such developments shall comply with the requirements of tier 1 or tier 2 projects described in subsections 150-48(c) and (d) as appropriate and as determined by the presiding local government.
- (g) Determination of trip generation associated with an application for development shall be based on impact fee schedule A or B in section 150-40 or the latest edition of the Institute of Transportation Engineers Trip Generation Manual. As an alternative to the fee schedule and trip generation manual, the applicant may submit a trip generation study in accordance with section 150-40(d) and (e).
- (h) Deficient road corridors are identified in the following table and in exhibit K. The table and exhibit K do not include deficient roads with mitigating improvements scheduled within the next three years.

Deficient road corridors include the following:

Road Segment	From	To
102nd Avenue (CR 296)	Ridge Road	131st Street
22nd Avenue North	34th Street (SR 55)	22nd St
38th Avenue North (CR 184)	49th Street North (CR 611)	34th Street North
Alternate US 19 (SR 595)	Main Street (SR 580)	Pinellas/Pasco County Line

Appendix A: Multimodal Impact Fee Ordinance

Bay Drive (SR 686)	Clwtr Largo Road (CR 321)	US 19 (SR 55)
Bay Pines Blvd (SR 595)	Park Street (CR 1)	East of 94th Street
Belcher Road (CR 501)	Gulf to Bay Blvd (SR 60)	Belleair Road (CR 464)
Belleair Road (CR 464)	MLK Jr. Avenue	US 19 (SR 55)
Belleair Beach Causeway (SR 686)	Indian Rocks Road	Gulf Boulevard
Bryan Dairy Road (CR 296)	Seminole Blvd (SR 595)	98th Street
Court Street (SR 60)	Missouri Avenue (SR 651)	Highland Avenue
Drew Street (CR 528)	US 19 (SR 55)	NE Coachman Road (SR 590)
East Lake Road (CR 611)	Woodlands Parkway	Keystone Road (CR 582)
Forest Lakes Blvd (CR 667)	SR 580	Tampa Road
Ft. Harrison Avenue	Belleair Road (CR 464)	Drew St (SR 590)
Gandy Blvd (SR 694)	US 19 (SR 55)	Interstate 275 (SR 93)
Gandy Blvd (SR 694)	4th Street (SR 687)	Brighton Bay Boulevard NE
Gulf-To-Bay Blvd/Courtney Campbell Cswy (SR 60)	Keene Road (CR 1)	Pinellas/ Hillsborough CL
Gulf Blvd	Belleair Cswy	Walsingham Rd.
Interstate 275 (SR 93)	Gandy Blvd (SR 694)	Interstate 175
Indian Rocks Road (CR 233)	West Bay Drive (CR 416)	Walsingham Road (CR 330)
Keene Road (CR 1)	Druid Road	Belleair Road (CR 464)
Keene Road (CR 1)	Sunset Point Road (CR 576)	SR 580
McMullen-Booth Road (CR 611)	Curlew Road (SR 586)	Gulf-To-Bay Blvd (SR 60)
Memorial Causeway (SR 60)	Coronado Drive	Island Way
Park Blvd (CR/SR 694)	US 19 (SR 55)	49th Street North
Park Blvd (CR/SR 694)	66th Street North	Duhme Road/113th Street North (CR 321)
Roosevelt Blvd (SR 686)	49th Street North (CR 611)	Ulmerton Road (SR 688)
SR 580	Phillipe Parkway (CR 590)	Forest Lakes Blvd (CR 667)
Starkey Road (CR 1)	East Bay Drive (SR 686)	Largo Lakes Blvd
Tampa Road (SR 584)	Curlew Road (SR 586)	SR 580
Tarpon Avenue (SR 582)	Alternate US 19 (SR 595)	US 19 (SR 55)
Ulmerton Road (SR 688)	40th Street	E. Roosevelt Blvd (SR 686)
US 19 (SR 55)	SR 580	Beckett Way
US 19 (SR 55)	Mainlands Boulevard	54th Avenue North (CR 202)
Walsingham Road	Ulmerton Road (SR 688)	Seminole Blvd (SR 595)

- (i) Existing levels of service (LOS) used to identify deficient road corridors are based on the annual Metropolitan Planning Organizations Level of Service Report.

(Ord. No. 16-21, § 14, 3-29-16)

Appendix A: Multimodal Impact Fee Ordinance

Sec. 150-49. Territory embraced.

This article shall apply to the unincorporated area of the county and to the incorporated areas of the county to the extent permitted by article VIII, section 1(g) of the State Constitution and the County Charter.

(Ord. No. 86-43, § 16, 6-10-86; Ord. No. 90-88, § IV, 12-4-90; Ord. No. 16-21, § 15, 3-29-16)

Charter reference(s)—Conflicts between county and municipal ordinances, §§ 2.01, 2.04.

Sec. 150-50. Repeal of article.

After final adoption of this article by the board of county commissioners, this article shall be transmitted to all municipalities within the county. In the event any one municipality or group of municipalities representing ten percent or more of the total countywide population, based upon the latest population figures published by the county planning department, shall elect to exempt itself or themselves from this article, this article shall be deemed automatically repealed.

(Ord. No. 86-43, § 17, 6-10-86; Ord. No. 90-88, § IV, 12-4-90; Ord. No. 02-98, § 12, 12-3-02; Ord. No. 16-21, § 16, 3-29-16)

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Appendix A: Multimodal Impact Fee Ordinance

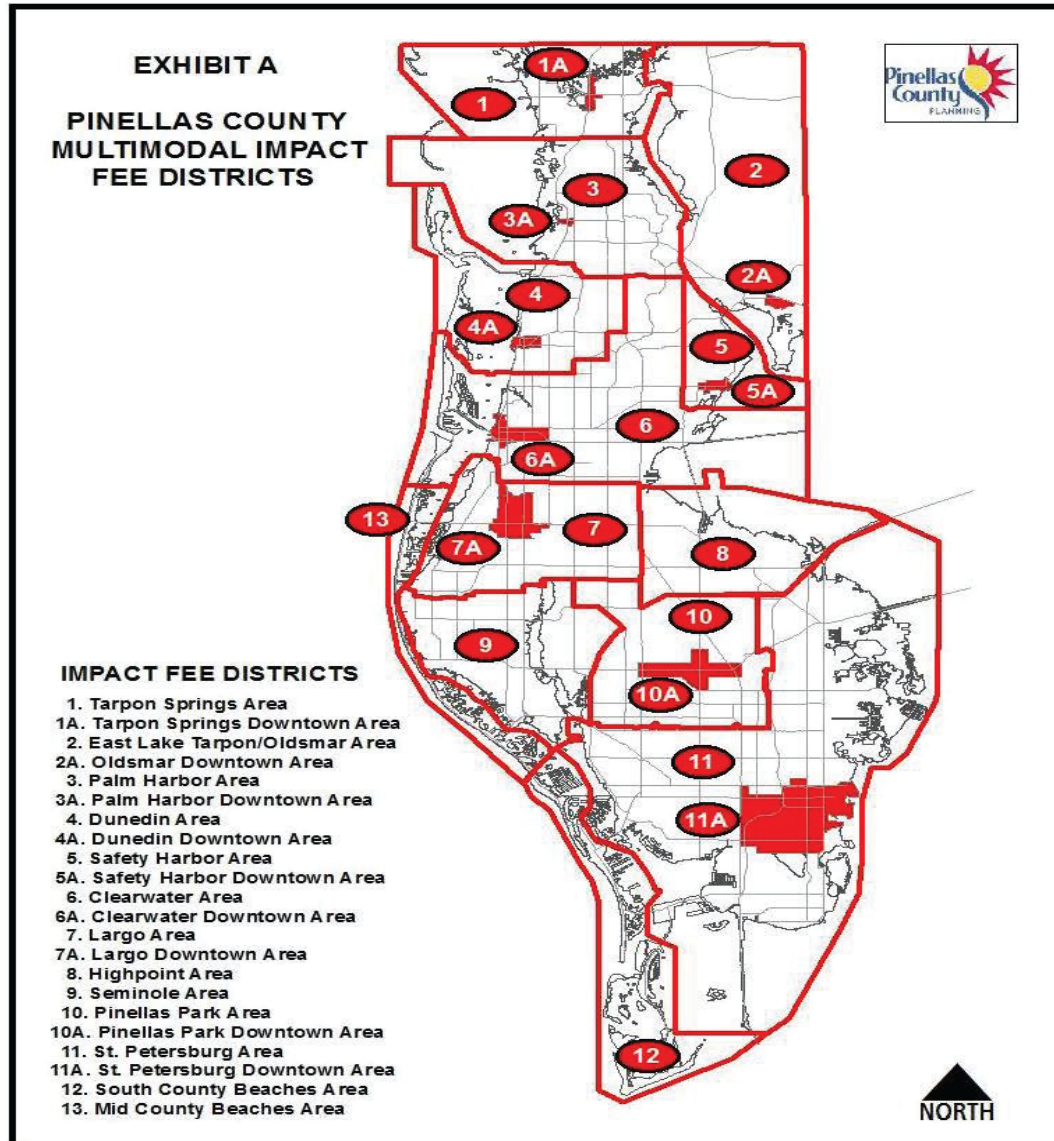
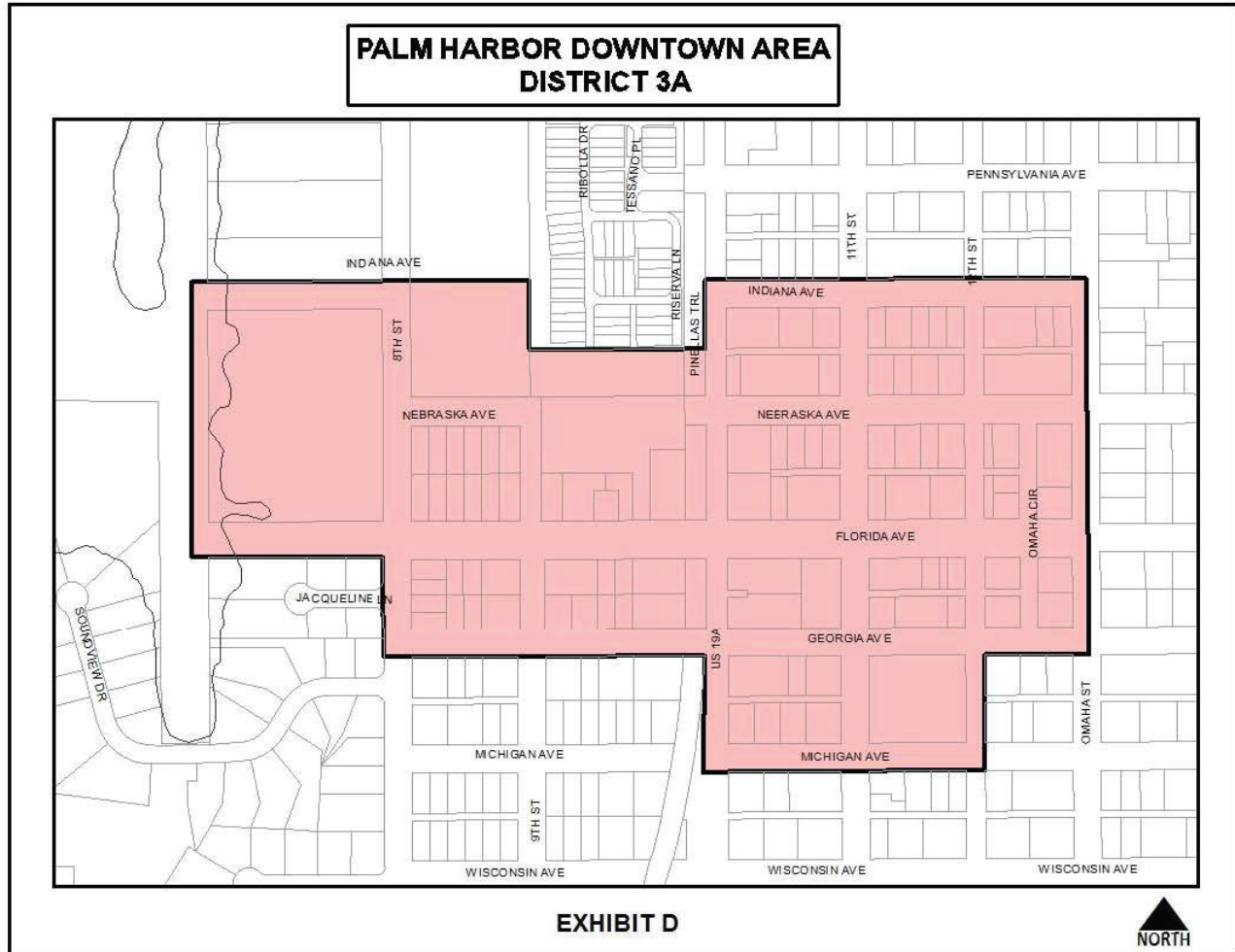


Exhibit A: Multimodal Impact Fee Districts







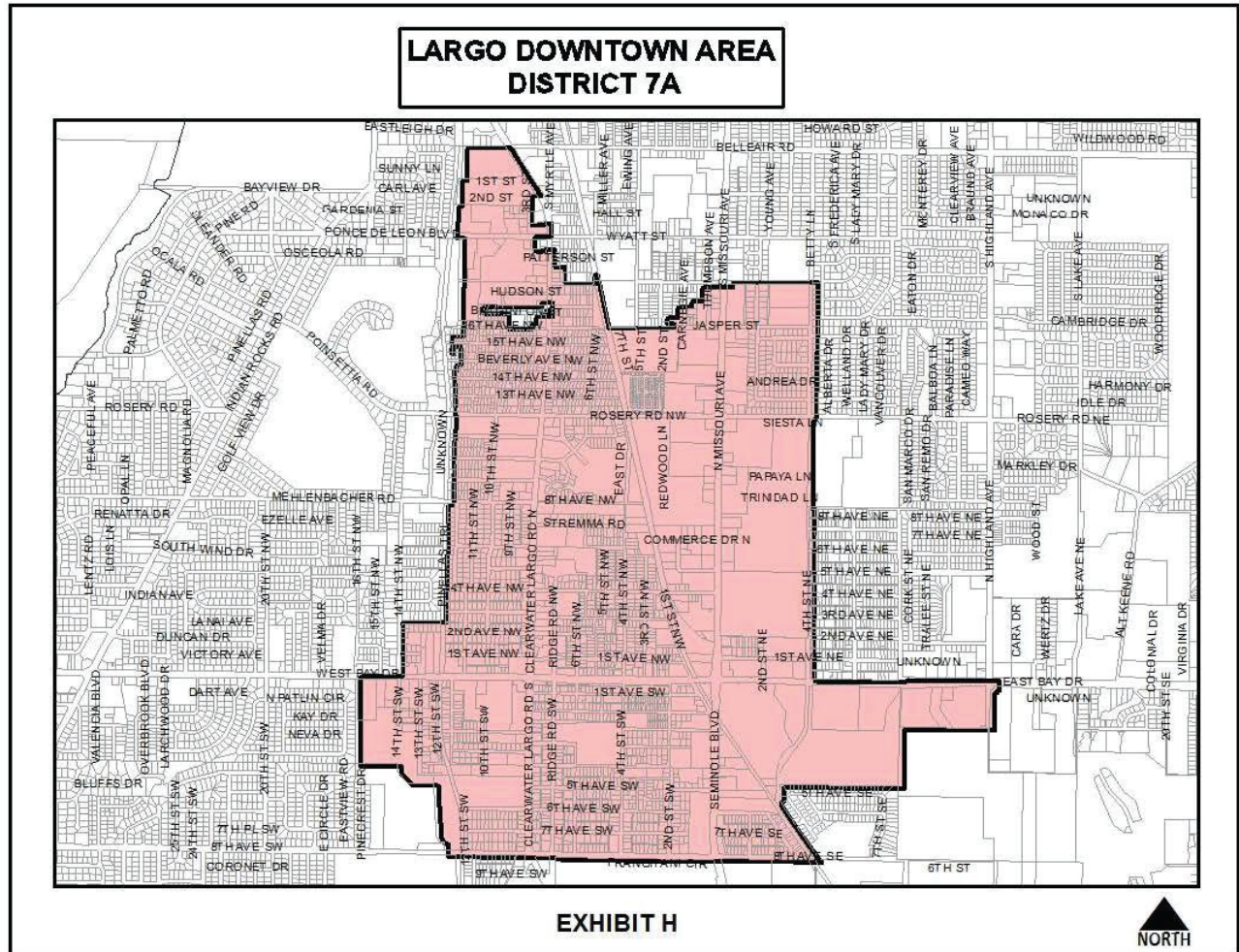
**Exhibit D: Palm Harbor Downtown Area
District 3A**





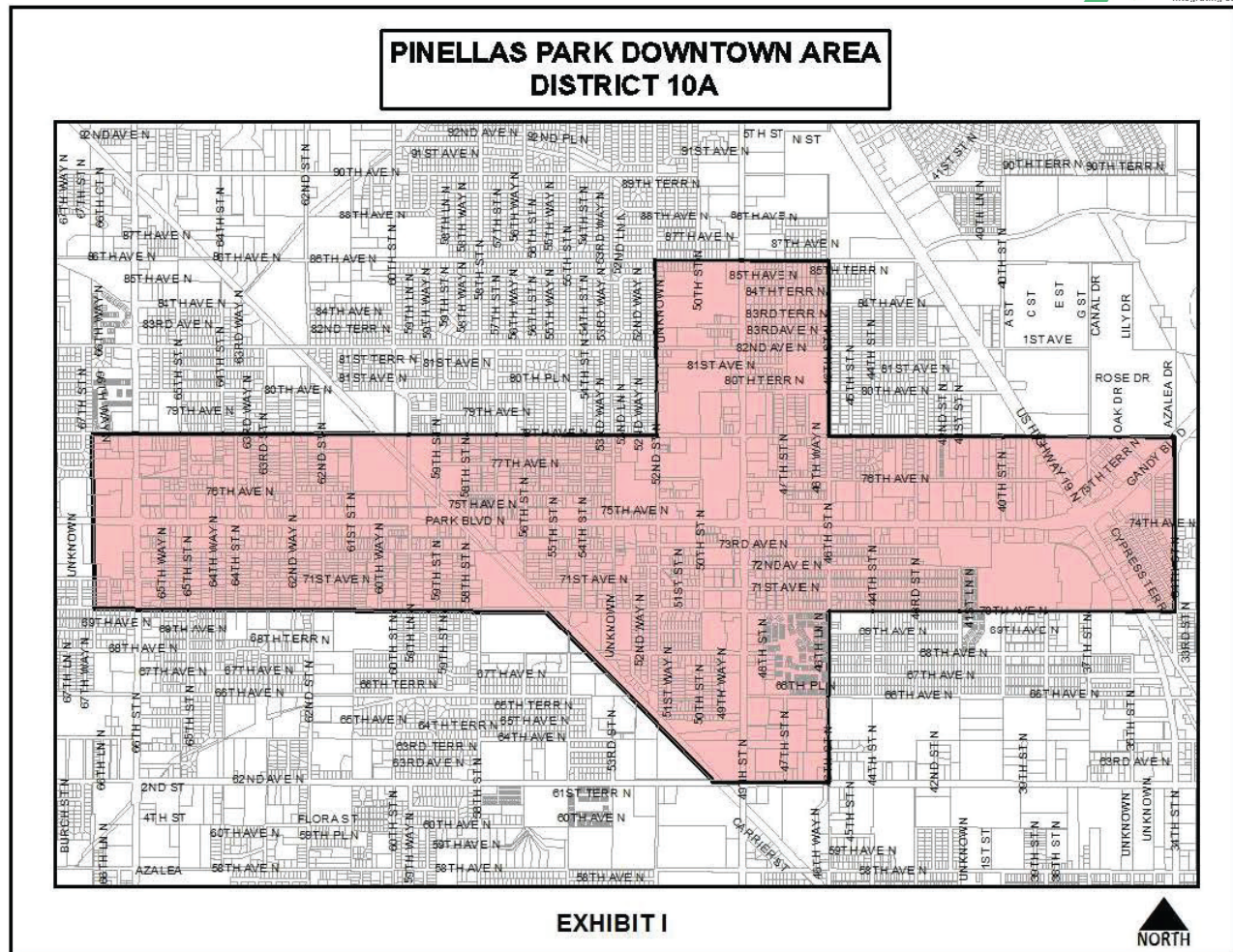


Appendix A: Multimodal Impact Fee Ordinance



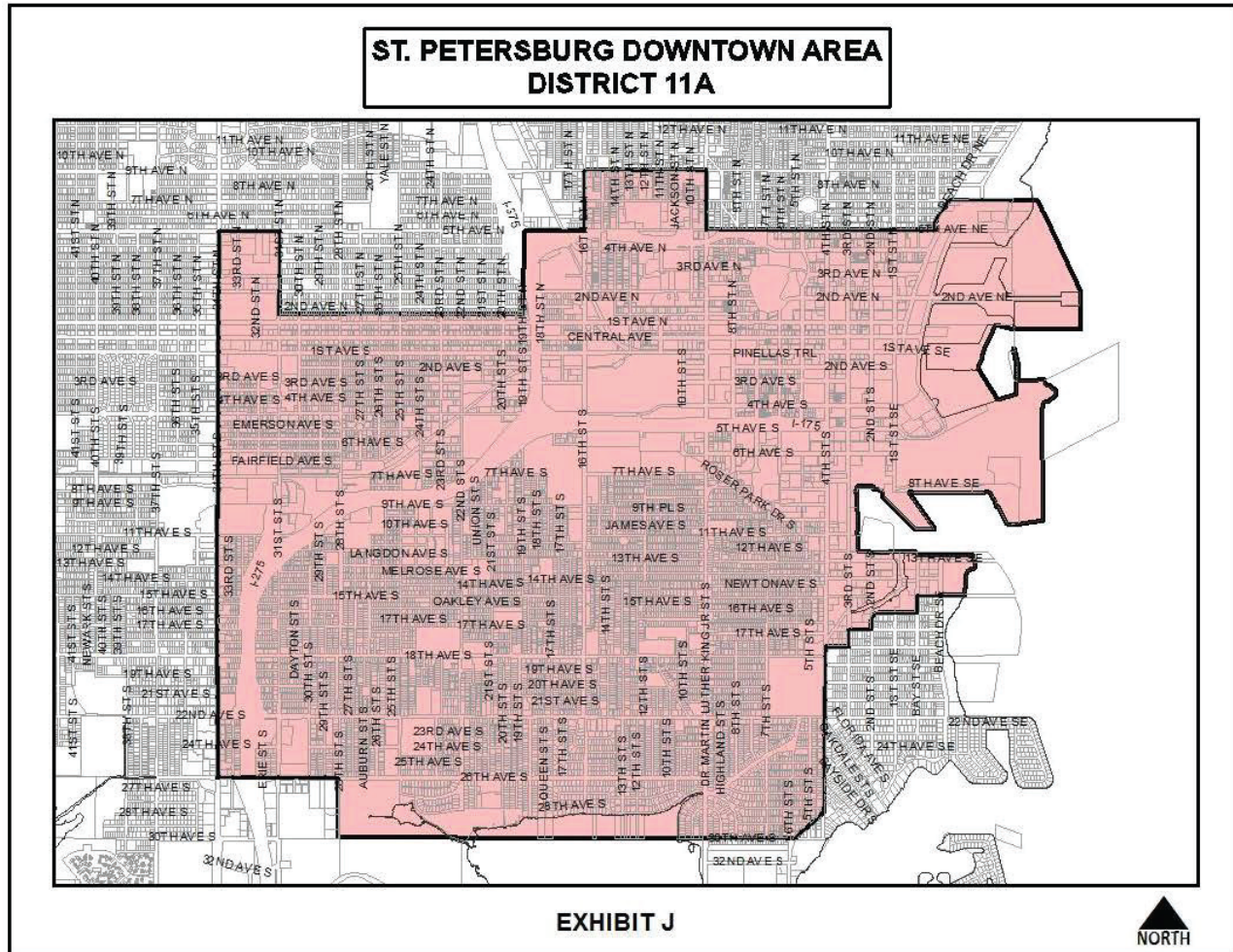
**Exhibit H: Largo Downtown Area
District 7A**

Appendix A: Multimodal Impact Fee Ordinance



**Exhibit I: Pinellas Park Downtown Area
District 10A**

Appendix A: Multimodal Impact Fee Ordinance



**Exhibit J: St. Petersburg Downtown Area
District 11A**

Appendix A: Multimodal Impact Fee Ordinance

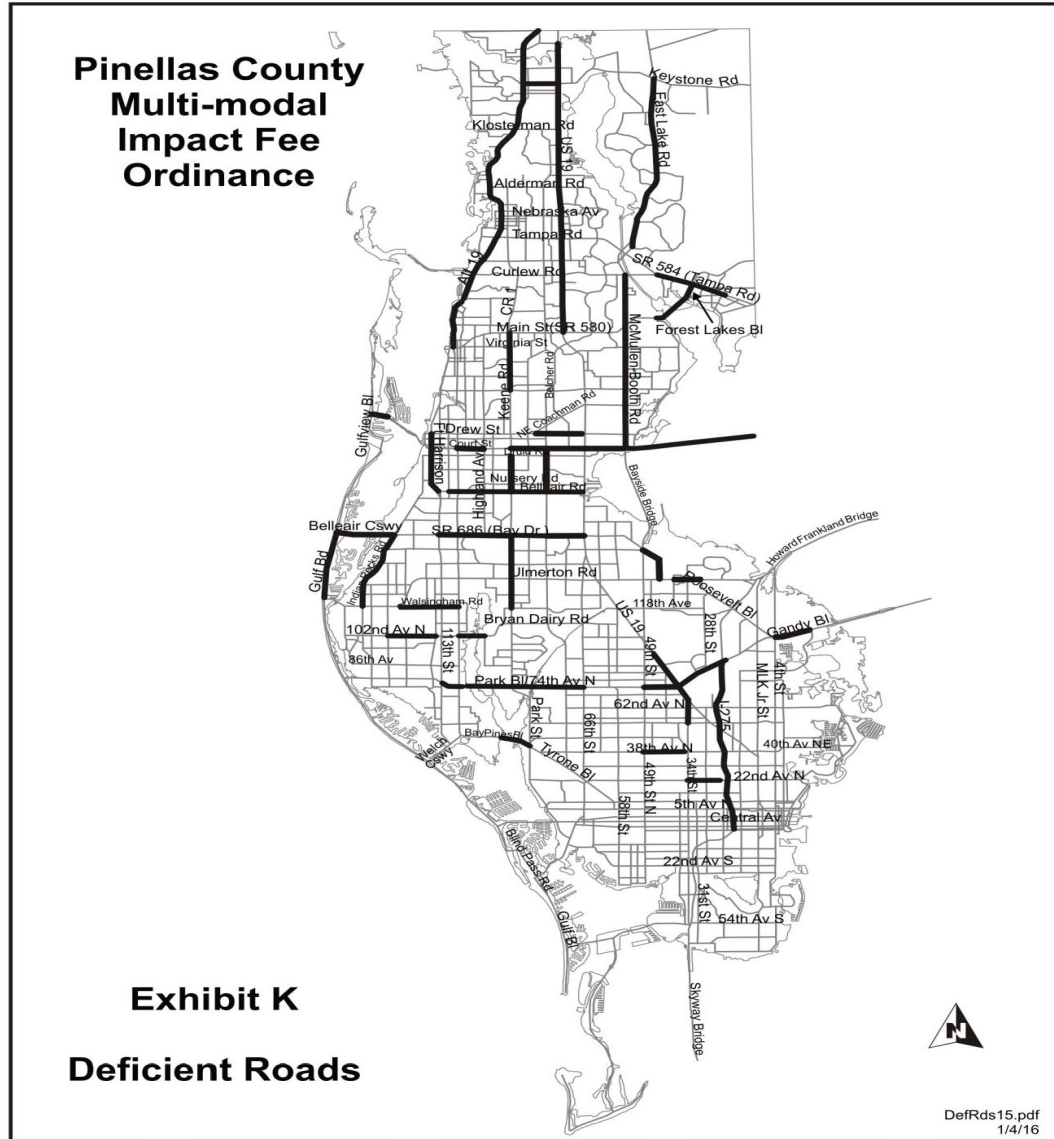


Exhibit K: Deficient Roads

(Ord. No. 16-21, § 17, 3-29-16)